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Subject: Law

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Paper : Advanced Constitutional Law

Module 'Judiciary' under the Indian Constitution (Powers, Jurisdiction and Procedure)



A Gateway to



Component - I - Personal Details

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Component - I (B) Description of Module

	Description of Module
Subject Name	Law
Paper Name	Advanced Constitutional Law
Module Name/Title	‘Judiciary’ under the Indian Constitution (Powers, Jurisdiction and Procedure)
Pre-requisites	Understanding that judiciary plays very important role of interpreting, applying the law and also adjudicates upon controversies between one citizen and another and between a citizen and state
Objectives	To provide an understanding of Judicial activism and Judicial review



Component - II

Module 31_ 'Judiciary' under the Indian Constitution (Powers, Jurisdiction and Procedure)

Learning Outcome

After discussing this lesson, we will be able to know:

- the composition, powers and functions of the Supreme Court of India
- the composition, powers and functions of the High Courts of India
- the concept and practice of judicial review in India
- the concept and practice of judicial activism in India

THE UNION JUDICIARY- THE SUPREME COURT (ARTICLES 124-147)

The judiciary plays very important role of interpreting, applying the law and also adjudicates upon controversies between one citizen and another and between a citizen and state. In a country with a written constitution, courts have the additional function of safeguarding the supremacy of the constitution by interpreting its provisions and ensuring that all authorities are within the Constitutional framework.

In India, we have an independent and integrated judicial system. Judiciary also has the significant function of protecting and enforcing the Fundamental Rights of the people guaranteed to them by the Constitution. Unlike other federations, India has a single and unified judicial system for the entire country. There are High Courts at the State level , under each High Court there exists a system of subordinate courts.

Supreme Court-The guardian of the Constitution, is the highest court of appeal in India and enjoys the topmost position in the judicial hierarchy of the country. It is the supreme interpreter of the Constitution , guardian of the Fundamental Rights, and is the ultimate court of appeal in all



civil and criminal matters and thus helps in maintaining a uniformity of law throughout the country. The essence of a federal Constitution is the division of powers between the central and state governments. The division is made by a written constitution which is the supreme law of the land. Since the language of the Constitution is not free from ambiguities and its meaning is likely to be interpreted differently by different authorities at different times, it is but natural that disputes might arise between the centre and its constituent units regarding their respective powers. Therefore to maintain the supremacy of the Constitution, there must be an independent and impartial authority to decide disputes between the Centre and States or the States inter se. This function can only be entrusted to a judicial body. The Supreme Court under our constitution is such an authority. Truly, the Supreme Court has been called upon to safeguard civil and minority rights and plays the role of “guardian of social revolution.”

Let us discuss the following aspects regarding the Supreme Court:

Composition: The Supreme Court of India consists of a chief Justice and until Parliament may by law prescribes a larger number, not more than seven other judges.¹ Thus Parliament may by law increase this number, by law.² The constitution does not provide for the minimum number of judges who will constitute a bench for hearing cases.

At least five judges bench is required to decide a case involving a substantial question of law as to the interpretation of the Constitution and for hearing a reference by the President under Art. 143.³ In other matters, the rules made by the Supreme Court may fix the minimum number of judges who are to sit for any purpose.⁴ No judgment or opinion is delivered by the court except with the concurrence of a majority of the judges present at the hearing of the case, though a judge not agreeing with the majority view is entitled to deliver a dissenting judgment or opinion.⁵ The concurrence of the majority of judges present at the hearing of the case is necessary for any judgment or order. When a bench consists of two

¹ Art. 124(1)

² Originally the total number of judges was seven but in 1977, this was increased to 17 excluding the Chief Justice. At present there are 27 judges including the Chief Justice though the total sanctioned strength of judges in the Supreme Court is 31 including the Chief Justice.

³ Art. 145(3)

⁴ Art. 145(2)

⁵ Art. 145(5)



judges, and they differ, the matter is to be referred to the Chief Justice for constituting a larger bench.

Appointment:

Every judge of the Supreme Court is appointed by the President of India after consultation with such judges of the Supreme Court and the High Courts of States as the President may deem necessary for the purpose.⁶ Under Article 124(2), the President in appointing other judges of the Supreme Court is bound to consult the Chief Justice of India. He may consult such other judges of the Supreme Court and High Courts as he may deem necessary. It should, however be noted that the power of the President to appoint judges is purely formal as in this matter, he acts on the advice of the Council of Ministers. There is always an apprehension that Executive may bring in politics in the appointment of judges. The Indian Constitution therefore, does not leave the appointment of judges on the discretion of the Executive. The Executive under this Article is required to consult persons who are ex- hypothesi well qualified to give proper advice in the matters of appointment of judges. However, in the matter of appointment of a judge other than the Chief Justice, consultation of the Chief Justice of India by the President is obligatory.

Qualifications:

To be a judge of the Supreme Court, one must be

- a citizen of India
- has been a judge of a High Court at least for five years; or
- has been an advocate of a High Court for at least ten years
- Is a distinguished jurist in the opinion of the President.⁷

Tenure:

A judge of the Supreme Court retires at the age of 65 years. He may also resign from his office.

Removal of Judges: The question regarding the removal of a judge before the age of superannuation is an important one as it can have a significant bearing on the independence of Judiciary. The Constitution of India also makes a provision for the removal of a Supreme Court judge.⁸

⁶ Art. 124(2)

⁷ Art. 124(c)

⁸ Art. 124(2), proviso(b); Arts. 124(4), 124(5)



Impeachment-- A judge of the Supreme Court can be removed by the President from his position only on the ground of proved misbehaviour or incapacity if a resolution in this regard is passed by the Parliament supported by two-thirds of the members present and voting in each House and the majority of the total membership of each House.⁹ The procedure of the presentation of an address for investigation and proof of the misbehaviour or incapacity of a judge will be determined by Parliament by Law.¹⁰ The word ‘proved’ in this provision indicates that the address can be presented by Parliament only after the alleged charge of misbehaviour or incapacity against the judge has been investigated, substantiated and established by an impartial tribunal. The constitutional provision does not prescribe how this investigation is to be carried on. It leaves it to Parliament to lay down by law the detailed procedure according to which the address may be presented and the charge of misconduct or incapacity against the judge investigated and proved.

In accordance with the above provision, Parliament has enacted law for the purpose, under which the procedure for investigation into misbehavior or incapacity of a Judge shall be done by a committee constituted by the speaker of the Lok Sabha or the Chairman or the Rajya Sabha, as the case may be, if the Speaker or Chairman admits the motion after consulting such persons as he thinks fit and after considering such materials, if any, as are available to him.¹¹

In *K. Veeraswami v Union of India*,¹² A five Judge bench of the Supreme Court by a majority of 4:1 has held that a Judge of the Supreme court and High Court can be prosecuted and convicted for criminal misconduct. The expression “misbehavior” in Article 124(5) includes criminal misconduct defined in the Prevention of Corruption Act. The expression “public servant” in Section 6(1)(c) and (2) includes judges of the High courts and Supreme Court.

In every democratic country swearing by the rule of law, special provisions are, therefore, made, making removal of judges, an extremely difficult exercise. The security of tenure of the Supreme court judges has been ensured by this provision of the Constitution. In Britain, for example, judges hold office during good behaviour and can be removed only on an address from both houses of Parliament. In the U.S.A, the judges of the Supreme Court hold office for life. They can, however be removed by impeachment in cases of treason, bribery or other high crimes and misdemeanours. Provision has however been made by

⁹ Art. 124(4)(5)

¹⁰ Art. 124(5)

¹¹ Judges (Inquiry) Act, 1968

¹² [1991] 3 SCC 655



law for voluntary retirement on full salary after ten years of service and attainment of the age of seventy.

Powers and Functions :

The jurisdiction of the Supreme Court may be categorised as original, appellate and advisory.

Original Jurisdiction: Article 131 : Under this jurisdiction, the Supreme Court can settle disputes

- (a) between the Centre and one or more States;
- (b) between the Centre and any State or States on the one side and one or more other States on the other;
- or
- (c) between two or more States.

The Supreme Court in its original jurisdiction cannot entertain any suits brought by private individuals against the Government of India. The dispute relating to the original jurisdiction of the court must involve a question of law or fact on which the existence of 'legal right' depends. This means that the court has no jurisdiction in matters of political nature. The term legal right means a right recognized by law and capable of being enforced by the power of a state but not necessarily in a court of law.

The original jurisdiction of the Supreme Court, however, does not extend to the following matters:

- 1) To a dispute arising out of any treaty, agreement, covenant, engagement, or other similar instrument which was executed before the commencement of the Constitution and continues to be in operation or which provides that the jurisdiction of the Supreme Court shall not extend to such a dispute.¹³
- 2) Under Article 264, Parliament may by law exclude the jurisdiction of the Supreme Court in disputes with respect to the use, distribution or control of the water of any interstate river or river valley.
- 3) Matters referred to the Finance Commission¹⁴
- 4) The adjustment of certain expenses between the Union and the State¹⁵

Enforcement of Fundamental Rights: Directions, orders or writs: The Supreme Court is regarded as the protector of the Fundamental Rights of the citizens. For this purpose, it has been given the power

¹³ Art.131, proviso

¹⁴ Art. 280

¹⁵ Art.290



under **Article 32** which confers original jurisdiction on the Supreme Court to enforce Fundamental Rights. Under Article 32, every citizen has a right to move the Supreme Court by appropriate proceedings for the enforcement of Fundamental Rights. The Supreme Court is given power to issue directions or orders or writs in the nature of habeas corpus, mandamus, prohibition and certiorari whichever may be appropriate.

Appellate jurisdiction: Article 132: The Supreme Court is the highest court of appeal in the country. The writ and decrees of the court run through the country. Thus the jurisdiction and powers of the Supreme Court in their nature and extent are wider than those exercised by the high courts of any country in the Commonwealth or by the Supreme Court of the U.S.A.

Under this jurisdiction, the Supreme Court can hear appeals on the following cases: ¹⁶

(a) Appeal in Constitutional matters: Article 132(1) An appeal shall lie to the Supreme Court from any judgment, decree or final order of a High Court whether in civil, criminal or other proceedings if the High Court certifies under Article 134 A, that the case involves a substantial question of law as to the interpretation of the Constitution.

The object of the new Article 134A is to avoid delay in granting certificate by the High Court for appeal to the Supreme Court. Under Article 132(1) three conditions are necessary for the grant of certificate by the High court:

- 1) The order appealed must be against a judgment, decree or final order made by the High Court in civil, criminal or other proceedings.
- 2) The case must involve a question of law as to the interpretation of this Constitution.
- 3) If the High court under Article 134A certifies that the case be heard by the Supreme Court

(b) Appeal in Civil matters: Article 133, In a civil cases also, an appeal can be made to the Supreme Court against a decision of a High court. In these cases, the High Court must certify that

- i. the case involves a substantial question of law as to the interpretation of the Constitution and;
- ii. that in the opinion of the High Court the said question needs to be decided by the Supreme Court.

Prior to the Constitution 30th Amendment Act, 1972, under Article 133 an appeal could lie to the

¹⁶ M.P.Jain, *Indian Constitutional law* (Wadhwa Nagpur, 2006) 218-231



supreme Court in civil cases from any judgment, decree or final order of the High Court if the High Court certified (a) that the amount or value of the subject matter of the dispute both in the first instance and also an appeal was not less than Rs.20,000; or (b) that the judgment, order or final order involves directly or indirectly same claim or question respecting property of the like amount or value i.e. Rs. 20,000 or (c) that the case was a fit one for appeal to the Supreme Court.

(c) Appeal in Criminal Cases: Article 134, An appeal lies in the Supreme Court against any judgment, final order or sentence given by a High Court. In criminal matters, ordinarily, the High Courts are the final courts of appeal. But the Supreme Court has been given the special power by the Parliament to hear appeal against the decisions of the High Courts in criminal matters in the following two ways:

Without a certificate: Article 134(a) (b)—An appeal lies to the Supreme Court without the certificate of the High Court if the High Court

- i. has on appeal reversed an order of acquittal of an accused person and sentenced him to death;
- ii. has withdrawn for trial before itself any case from any court subordinate to its authority and has in such trial convicted the accused person and sentenced him to death.

But if the High Court has reversed the order of conviction and has ordered the acquittal of an accused, no appeal would lie to the Supreme Court.

With a certificate—Article 134(c)—an appeal lies to the Supreme Court if the High Court certifies under Article 134-A that it is a fit case for appeal to the Supreme Court.

(d) Special leave to appeal: Article 136: The Supreme court is authorized to grant in its discretion special leave to appeal from (a) Any judgment, decree, determination, sentence or order, (b) in any case or matter, (c) passed or made by any court or tribunal in the territory of India. The only exception to this power of the Supreme Court is with regard to any judgment etc. of any court or tribunal constituted by or under any law relating to the armed forces.

This Article vests very wide power in the Supreme Court. The power given under this Article is in the nature of special residuary powers which are excisable outside the purview of ordinary law. **Articles 132—135** deal with ordinary appeals to the Supreme Court in cases where the needs of the justice demand interference by the highest court of the land. This Article is worded in the widest possible terms.



It vests in the Supreme Court a plenary jurisdiction in the matter of entertaining and hearing appeals by granting special leave against any kind of judgment or order made by any court or tribunal (except a military tribunal) in any proceedings and the exercise of this power is entirely left to the discretion of the court unfettered by any restrictions and this power cannot be curtailed by any legislation short of amending the Article itself.

Advisory Jurisdiction: Article 143: The Supreme Court has some advisory powers also. Article 143 provides that if at any time it appears to the President that---

- a) a question of law or fact has arisen or is likely to arise, and
- b) the question is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question for the advisory opinion of the Court and the Court may after such hearing as it thinks fit, report to the President its opinion thereon.

Under clause (2), if the President refers to the Supreme Court matters which are excluded from its jurisdiction under the proviso to Article 131, the court shall be bound to give its opinion thereon. There is no such provision similar to this in the Constitution of the United States of America or in the Australian Constitution.

The Supreme Court has to confine itself to the questions referred to it by the President; it cannot travel beyond the reference. The circumstances that the President has referred only some questions regarding the validity of a Bill or an Act, and not others which also appear to arise, is no good reason for declining the reference. As has been stated by A.N.Ray, C.J., in *Re Presidential Poll*¹⁷, "this court is bound by the decision in order of reference under Art. 143(1). The court cannot go into disputed questions of fact in its advisory jurisdiction."

Court of Record:

Article 129 makes the Supreme Court also act as the Court of Record and confers all the powers of such a court including the power to punish for its contempt. The judgments of the Supreme Court are recorded and considered as authoritative and serves as cases, laws and proceedings. These records have great evidentiary value. Once a court is made a Court of Record, its power to punish for contempt necessarily follows from that position. This extraordinary power must be sparingly exercised only where the public interest demands.

¹⁷ [1974] 2 SCC 33



Review of judgment and order Article 137: The Supreme Court is empowered to review any judgment given by it earlier. It can do this if

- (a) some new facts or evidences appear;
- (b) a fault is found according to its own record; and
- (c) sufficient reasons for review.

In a review petition, an error of substantial nature can only be reviewed. When a plea of self defence is taken and if the court is satisfied that it is probable and there is basis for the same and if the benefit is to be given to the accused then the legality of the conviction itself is involved. The question of self-defence is one of both law and fact. If the Court is satisfied about probability and basis of such plea, such a question can be examined.

Article 38 empowers Parliament to invest the Supreme Court with such additional jurisdiction and a power with respect to any of the matters mentioned in the Union list as it thinks fit.

Enforcement of Decree and Orders of Supreme Court(Arts. 142& 144)

Article 142 provides that the Supreme Court in exercise of its jurisdiction may pass such decrees or orders as is necessary for doing complete justice in the matter pending before it. The power under Art. 142 is inherent power and can be used for doing complete justice. The decree or order made by the court shall be enforceable throughout the territory of India in such manner as may be prescribed by or under any law made by Parliament. Until provision is made by Parliament the orders of the Court will be enforced in the manner prescribed by the President. **Article 144** provides “all authorities, civil and judicial, in the territory of India shall act in aid of the Supreme Court.” The power under this Article is very wide and the court can formulate legal doctrines to meet the ends of justice. The object is to enable the court to declare law to give directions or pass such orders as are necessary to do complete justice.

Guardian of the Constitution: The Supreme Court of India is regarded as the guardian of the Constitution. It is the Supreme or final interpreter of the Constitution. The interpretation of the Constitution given by the Supreme Court is to be respected. **Under Article 141, law declared by the Supreme Court to be binding on all the courts.** The expression “all courts, within the territory of India” clearly means Courts other than the Supreme Court. Thus the Supreme Court is not bound by its own decisions and may in proper case reverse its previous decisions.



Judicial Review: The Supreme Court has been given the power to decide whether a law passed by the Parliament or the State legislatures and the executive decisions taken by the Central or State government is constitutional or not. If such a law or executive decision is found unconstitutional, then it can declare it as invalid.

Public Interest Litigation: Even if the victim or affected parties do not file cases, any one from the general public, not involved in the case, may file litigation (law suit), if it is in the general public interest. It is the privilege of the Court to entertain or not to entertain the application for Public Interest Litigation.

Contempt of Court:

The Supreme Court has a summary jurisdiction to punish contempt of its authority. This is an extraordinary power and is exercised only when the public interest so demands. Such a power is very necessary to prevent interference with the course of justice, to maintain the authority of law as administered in the court, and thus to protect public interest in the administration of justice. Contempt of court includes criticism of a judgment of the court, criticism of judges and the court, passing derogatory remarks against the court, refusing to abide by the decisions of the court, etc.

In several cases, private parties violating or flouting Supreme Court orders have been held guilty of contempt of court. Gomti river was being polluted due to discharge of effluents from the distillery of a company. Despite the Supreme Court order, the company failed to remove deficiencies in the effluent treatment plant by a certain date and kept running the plant. The court imposed a fine of Rs. 5 lacs on the company, the amount to be utilised for cleaning of the Gomti river.¹⁸In *T.N. Godavarman Thirumalpad v. Ashok khot*¹⁹, punishment by way of imprisonment for a month has been imposed on a Minister incharge of a department as well as the Principal Secretary of the Department, who were found guilty of a wilful violation of an order of the Supreme Court.

Recent Developments:

Recently, the Lok Sabha has passed The Constitution (121st Amendment) Bill, 2014 and The National

¹⁸*Vineet Kumar Mathur v. Union Of India*, [1996] 7 SCC 714

¹⁹ [2006] 5 SCC 1



Judicial Appointments Commission Bill, 2014.





Table : Comparison of the provisions of the 2014 Bills with that of the 2013 Bills and the recommendations of the Standing Committee:

The Constitution (120th Amendment) Bill, 2013 and Recommendations of the Standing Committee, 2013	The Judicial Appointments Commission (JAC) Bill, 2013	Constitution (121st Amendment) Bill, 2014 and the National Judicial Appointments Commission Bill, 2014
Prescribing of the Composition and functions of the Commission		
The Constitution (120th Amendment) Bill, 2013 created a Judicial Appointments Commission (JAC) to make recommendations for appointments to the Supreme Court and High Courts But it left the composition and functions of the JAC to be determined by law made by Parliament	Composition and functions of the JAC should be included in the Constitution. Procedure to be followed by the JAC may be determined by law made by Parliament.	Standing Committee recommendations incorporated.
Members of the Commission		
The JAC Bill, 2013 provided that the JAC shall comprise: (i) the Chief Justice of India (Chairperson) (ii) two other senior most judges of the Supreme Court, (iii) the Union Minister for Law and Justice, and (iv) two eminent persons to be nominated by the Prime Minister, the CJI and the Leader of Opposition of the Lok Sabha	Eminent persons: There should be three eminent persons, instead of two. At least one of the three members should be an SC, ST, OBC, woman, or minority, preferably by rotation.	The composition remains unchanged, with 6 members. However, it adds that one of the eminent persons shall be nominated from amongst the Schedule Castes, the Schedule Tribes, Other Backward Classes, Minorities or women.
Functions of the Commission		
The functions of the JAC include making recommendations for: (i) the appointment of the CJI, SC judges and other judges of the HC's; (ii) transfer of Chief Justices and other HC judges from one HC to another The JAC is to ensure that the person recommended is of ability and integrity.	Not addressed	Functions have been included in the Constitutional (121st Amendment) Bill, 2014
Power of the President to require reconsideration		
No provision.	Not addressed.	The President may require the Commission to reconsider the recommendations made by it. If the Commission makes a unanimous recommendation after such reconsideration, the President shall make the appointment accordingly.
Procedure for Selection of Supreme Court judges		
Procedure for short listing: The Union Secretary of the Department of Justice will initiate the process by inviting recommendations from the Chief Justices of HC's, the central and state governments.	Not addressed.	Chief Justice of India: The NJAC shall recommend the senior most judge of the Supreme Court for appointment as Chief Justice of India. This is provided he is considered fit to hold the office.
The JAC may specify the procedure for short listing of candidates for appointments to the SC and HC through regulations.		SC judges: The NJAC shall recommend names of persons on the basis of their ability, merit and other criteria specified in the regulations. Veto power of members: The Commission shall not recommend a person for appointment if any two members of the Commission do not agree to such recommendation.
Procedure for Selection of High Court judges		
For appointment of HC judges, the JAC will elicit views of the Governor, Chief Minister and Chief Justice of the HC of the relevant state, in writing.	Short listing of candidates for HC: The Bill should lay down the broad parameters for short listing of candidates for selection as HC judges.	Chief Justice of High Courts: The Commission is to recommend a Judge of a High Court to be the Chief Justice of a High Court on the basis of inter-se seniority of High Court Judge and ability, merit and other criteria of suitability as specified in the regulations. Veto power of members: The Commission shall not recommend a person for appointment if any two members of the Commission do not agree to such recommendation.
		Other HC Judges: Nominations: Nominations shall be sought from Chief Justice of the concerned High Court for appointments of HC Judges.
	Nominations: Eligible members of the Bar should be given an opportunity to be considered for appointment to High Courts, by way of public notifications and advertisements, as is practice in the United Kingdom.	Eliciting views: The Commission shall nominate names for appointment of HC Judges and forward such names to the Chief Justice of the concerned HC's for his views.
		In both cases, the Chief Justice of the HC shall consult two senior most judges of the HC and other judges and advocates as specified in the regulation. Views of the Governor and CM: The NJAC shall elicit the views of the Governor and Chief Minister of the state before making recommendations. Transfer of Chief Justices and other HC judges: The NJAC would make recommendations for transfer of Chief Justices and other judges of the High Courts. The procedure to be followed will be specified in the regulations.
Reference to Commission for filling up vacancies		
When a vacancy arises in the SC or HC's, the central government will make a reference to the JAC. Existing vacancies will be notified to the JAC within three months of the Act entering into force.	Not addressed.	When a vacancy arises in the SC or HC's, the central government will make a reference to the NJAC. Existing vacancies will be notified to the NJAC within thirty days of the Act entering into force.
When a vacancy arises due to the completion of term, a reference will be made to the JAC two months in advance;		When a vacancy arises due to the completion of term, a reference will be made to the NJAC six months in advance.
For vacancies due to death or resignation, a reference should be made within two months of its occurrence.		For vacancies due to death or resignation, within thirty days of its occurrence.



THE STATE JUDICIARY (ARTICLES- 214-237)

The Judiciary in states consists of a High Court and a system of Courts subordinate to the High Court.

THE HIGH COURT

The Constitution, Article 214 provides for a High Court in every State which works under the Supreme Court of India. However, under Article 231(1), Parliament can establish by law a common high Court for two or more states or for two or more states and a Union Territory. But in some cases, one High Court serves more than one State. For example, the Gauhati High Court serves not only Assam but also the other States of the North-Eastern region.

Composition: Art.-216

The High Court consists of the Chief Justice and such other judges as the President may appoint from time to time. In this way, the number of judges in a High Court is flexible and it can be settled by the Central Executive from time to time keeping in view the amount of work before a High Court. The President may also appoint a qualified person as an additional judge in a High Court for two years. The question of justiciability of the adequacy of the judges strength in a High Court has been considered by the Supreme Court in *Supreme Court Advocates- on- Record Association v. Union of India*²⁰. The court emphasised that it is necessary to make a periodical review of the Judge strength of every High Court with reference to the need for disposal of cases, taking into account the backlog of cases and the future expected filing. Also, this is essential to ensure speedy justice.

Appointment: Art.-217

The judges of the High Court are appointed by the President of India. The President appoints the Chief Justice of a High Court after consultation with the Chief Justice of India and the Governor of the State.

²⁰ [1993]4 SCC 441



Additional and acting judges: The President may under Article 223 appoint one of the judges of the High Court as acting Chief Justice, when the office of the Chief Justice falls vacant or he is unable to perform his duties by reason of absence or otherwise. The President may appoint duly qualified persons to be additional judges of the Court for a temporary period not exceeding two years, in order to clear off the arrears of work in High Court. (Article 224). The President may also appoint an acting judge when any judge of a High Court other than Chief justice is unable to perform his duties by reason of absence or for any other reason, or is appointed to act temporarily as Chief Justice.

In actual practice, however the appointment of the Judges are made by the President on the advice of the Council of Ministers.

. Qualifications: To be a judge of a High Court one must be :

- a citizen of India,
- he must have held for, at least ten years a judicial office in the territory of India or;
- he must have been for, at least, ten years an advocate of a High Court. {Article 217 (1) (2)}

Tenure:

A judge of a High Court retires at the age of 62 years. He may also resign from his office at any time.

Removal:

The President may remove a judge of a High Court on the ground of “proved misbehaviour” or “incapacity.”

Jurisdiction of the High Court:

The High Courts have been given three types of powers or jurisdictions, such as, original, appellate and administrative.

Court of Record—Article 215 declares that every High Court shall be a court of Record and shall have such all powers of such a court including the power to punish for its contempt. The scope and nature of the power under this Article is similar to the powers of the Supreme Court under Article 129.



Original Jurisdiction: Under the original jurisdiction, a High Court has the power to issue direction or orders including writs (Article 226) to any person, authority and any government within its jurisdiction against the violation of the Fundamental Rights of the citizens. It has limited original jurisdiction in cases relating to admiralty, will, divorce, marriage, company laws and contempt of Court. Clause (4) of Art. 226 provide that the powers conferred on a High Court shall not be in derogation of the powers conferred on the Supreme Court by clause (2), Art. 32.

Appellate Jurisdiction: Under this jurisdiction, a High Court has the power to hear appeals about civil and criminal cases against the decisions of the lower Courts.

Administrative Jurisdiction: Under the jurisdiction, a High Court has the authority to supervise the workings of all subordinate Courts. It can issue general rules to regulate their proceedings. The judges of the subordinate Courts are appointed, promoted and transferred in consultation with the High Court of the state.

Other Jurisdiction:

- (a) The judgments of the High Courts are regarded and considered authoritative and serve as case law.
- (b) A High Court can start contempt proceedings against anyone who is found to indulge in contempt of the court.
- (c) Every High Court can admit Public Interest Litigation like that of the Supreme Court of India.

SUBORDINATE COURTS

All the subordinate Courts function under the supervision of the concerned High Court. The Court of the District Judge is the highest Court in a District. The judge is called the District Judge while dealing with civil cases and Sessions Judge while dealing with criminal cases. Besides these Courts, there are Courts of Assistant judges, Sub-Judges, Munsifs and Courts of small causes.

The High Court has been given control over District Courts and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of District Judge.



JUDICIAL REVIEW

Judicial review is a special power of the Supreme Court and the High Courts in India to scrutinize whether a law passed by the legislature or an action taken by the executive is in accordance with the provisions of the Constitution or not. If it is found that such a law or an action not in accordance with the Constitution, then it can declare them as invalid or unconstitutional. This means that the judiciary has to act as the guardian or custodian of the Constitution. The Supreme Court and the High Courts can exercise this power on two conditions —

(1) whether the law or the executive action which has come under scrutiny falls within the competence of the authority that has framed it, and

(2) whether it is consistent with Part III of the Constitution dealing with the Fundamental Rights.²¹

This is an important power of the Supreme Court and the High Courts. They have been protecting the Constitution from irresponsible laws and arbitrary use of power by the executive, by exercising this power. Our Fundamental Rights are also preserved by this power of the judiciary.

The concept of judicial review originated in the United States of America in the *Marbury V. Madison*²². The Chief Justice of the Supreme Court of America, John Marshall while delivering his judgement in this case used the famous “Due Process of Law” clause of the American Constitution. According to this clause, “due” means what is just and proper and “law” means natural law. Justice Marshall said that as the Supreme Court had been made the protector of the Constitution and the rights of the people, so it had to perform its duty and give justice. While doing so, it would try to determine the exact meaning of law, to expand its details and apply the general principles of justice, equity and morality. The process, thus, initiated by justice Marshall has been continuing and the Supreme Court has been creating some new laws while deciding various cases. The power of judicial review has made the Supreme Court of America one of the strongest judiciaries in the world.

However, the Supreme Court of India is not as powerful as the Supreme Court of America so far as the power of judicial review is concerned. In India, the Supreme Court while exercising its power of judicial

²¹Supra note 2 at p:268-272

²²5 U.S 137 1803



review has to follow the principle of “procedure established by law.” Article 21 of the Indian Constitution provides that “no person shall be deprived of his life or personal liberty except according to procedure established by law”. Here, the term “law” does not mean “natural law” but it means “State-made laws.” In other words, the court can only question the procedure and if the procedure is not followed, the court can declare any legislation made by the Parliament as unconstitutional. Further, the Supreme Court can declare any legislation as invalid if it violates the provisions of the Constitution. Thus, the Supreme Court of India has limited power of judicial review. Still, it has been able to exercise this power effectively in many cases and interpret and protect the provisions of the Constitution.

JUDICIAL ACTIVISM

In India, the judiciary has been given the power to protect the Constitution and to preserve the Fundamental Rights of the people. It has been empowered by the authority of judicial review and in that capacity it has been exercising its power in recent years which is dubbed as judicial activism. Under judicial activism, the court has begun to intervene in and question the activities of the executive and the legislature, reminding them, from time to time, of their duties and responsibilities to the society.

The beginning of judicial activism in India could be traced back to 1985 when the then Chief Justice of India, Justice P.N. Bhagwati converted a letter written to him on a post card by an aggrieved person into a Public Interest Litigation. By the middle of the 1990s, judicial activism became more and more pronounced. The activism of the Supreme Court became visible in terms of sensitizing the Central Intelligence Agency to discharge their constitutional obligations in the ***Hawala case***²³ in which top level political personalities were involved. It has passed landmark judgements over environmental degradation, pollution control, preservation of historical monuments, eviction of unauthorized occupation of government buildings, etc. In this way, the judiciary has become overwhelmingly busy with cases brought before it from various quarters of the society and the activism of the Indian Judiciary has benefitted the common people in terms of addressing their grievances to a large extent.

FACTS TO REMEMBER

²³*Vineet Narain & Others v Union of India & Another* [1998]1 SCC 226.



1. Two recent devices in the judicial system of India are the Lok Adalats and Public Interest Litigation. They provide speedy and affordable judicial service to the poor and the downtrodden.
2. A writ is a formal written court order. The **writ of Habeas Corpus** is a remedy against wrongful detention of a person. The **writ of Mandamus** is an order given by the court to some subordinate authority to perform an act which falls within its jurisdiction. The **writ of Prohibition** is issued by a superior court to a subordinate court to prevent it from dealing with a matter over which it has no jurisdiction. The writ of **Quo-warranto** is issued by the court to prevent a person from acting in a public office to which he is not entitled. The **writ of Certiorari** is issued by a superior court to a subordinate one to submit the record of a case for its proper consideration.

